

(Published in the Topeka Metro News May 11, 2026, and May 18, 2026.)

CHARTER ORDINANCE NO. 126

A CHARTER ORDINANCE introduced by Mayor Duncan amending the City's Charter Ordinance levying the transient guest tax for the City of Topeka.

NOW THEREFORE, BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF TOPEKA, KANSAS, THAT:

Section 1. That Section 1 of Charter Ordinance No. 125, as codified in § A15-17, of The Code of the City of Topeka, Kansas, is hereby amended to read as follows:

Levied – Amount.

(a) Effective November 14, 2015 and continuing through December 31, ~~2027~~2026, a transient guest tax of seven percent shall be levied in the City of Topeka, Kansas, upon the gross rental receipts derived from or paid directly or through an accommodations broker by transient guests for lodging or sleeping accommodations, exclusive of charges for incidental services or facilities, in any hotel, motel, or tourist court. Funds shall be distributed pursuant to resolution and agreement. Effective January 1, 2027, a transient guest tax of eight and one-half (8.5) percent shall be levied in the City of Topeka, Kansas, upon the gross rental receipts derived from or paid directly or through an accommodations broker by transient guests for lodging or sleeping accommodations, exclusive of charges for incidental services or facilities, in any hotel, motel, or tourist court. Funds shall be distributed pursuant to resolution and agreement.

~~(b) Effective January 1, 2028, and continuing through December 31, 2032, a transient guest tax of six percent shall be levied in the City of Topeka, Kansas, upon the~~

~~gross rental receipts derived from or paid directly or through an accommodations broker by transient guests for lodging or sleeping accommodations, exclusive of charges for incidental services or facilities, in any hotel, motel, or tourist court.~~

~~(c) Effective January 1, 2033, a transient guest tax of five percent shall be levied in the City of Topeka, Kansas, upon the gross rental receipts derived from or paid directly or through an accommodations broker by transient guests for lodging or sleeping accommodations, exclusive of charges for incidental services or facilities, in any hotel, motel, or tourist court.~~

(db) Notwithstanding anything to the contrary, the total transient guest tax collected at Hotel Topeka in the year 2025 shall constitute the “base year”. Effective January 1, 2026, the transient guest tax rate levied at Hotel Topeka shall be eight percent and effective January 1, 2027, the transient guest tax rate levied at Hotel Topeka shall be eight and one-half (8.5) percent. Any transient guest tax collected at Hotel Topeka in excess of the base year that is not contractually obligated shall be used solely by the City to recoup its investment costs of Hotel Topeka which include the purchase price, capital expenses, and operating losses incurred by the City through the date of sale. This provision shall expire upon complete reimbursement.

Section 2. This Ordinance shall be published once each week for two (2) consecutive weeks in the official City newspaper.

Section 3. This Charter Ordinance shall take effect sixty-one (61) days after final publication unless a sufficient petition for a referendum is filed and a referendum held on this Charter Ordinance as provided in Article 12, Section 5, Subdivision (c)(3),

of the Kansas Constitution, in which case this Charter Ordinance shall become effective if approved by a majority of the electors voting therein.

Section 4. Upon the effective date of this Charter Ordinance, this Charter Ordinance shall be recorded by the City Clerk in a book maintained for such purposes with a statement of the manner of adoption and a certified copy shall be filed with the Secretary of State of the State of Kansas.

Section 5. That Section One of Charter Ordinance No. 125, as codified in Topeka Municipal Code § A15-17 is hereby specifically repealed.

PASSED AND APPROVED by the Governing Body on May 5, 2026.

CITY OF TOPEKA, KANSAS

Spencer L. Duncan, Mayor

ATTEST:

Brenda Younger, City Clerk

STATEMENT OF MANNER OF ADOPTION OF FOREGOING

The foregoing Charter Ordinance No. 126 was passed on the 5th day of May, 2026, as shown by the minutes, Book 2026 Page _____, by a vote of 9 for and 1 abstention, being not less than two-thirds (2/3) of the members-elect of the governing body, published in the Topeka Metro News, the official city newspaper, on the 11th day of May, 2026, and on the 18th day of May, 2026, being once each week for two (2) consecutive weeks, and there being no petition demanding a referendum filed with the City Clerk within sixty (60) days after the final publication, said Charter Ordinance took effect on the 17th day of July, 2026.

Brenda Younger, City Clerk

CERTIFICATE

CITY OF TOPEKA)
COUNTY OF SHAWNEE) ss:
STATE OF KANSAS)

I, Brenda Younger, City Clerk of the City of Topeka, County of Shawnee, State of Kansas, do hereby certify that the above and foregoing, consisting of 4 typewritten pages, including the page upon which this Certificate is written, is a full true and correct copy of Charter Ordinance No. 126 of the said City of Topeka, that all acts and things required by Article 12, Section 5 of the Constitution of the State of Kansas were done and performed in the manner and within the time prescribed and that said Ordinance became effective on the 17th day of July, 2026.

Brenda Younger, City Clerk